

23STCV21997 23STCV21997

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23STCV21997 Hearing Date: July 1, 2026 Dept: 307

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11 TENTATIVE RULING 9:15 a.m., Wednesday, July 1,
2026

ESTATE

OF STANLEY WILSON, JR., BY AND THROUGH ADMINISTRATOR D. PULANE LUCAS AND
STANLEY WILSON, SR., et al. v. LOS ANGELES COUNTY SHERIFF'S DEPARTMENT, et al. [23STCV21997]

MOTION

FOR JUDGMENT ON THE PLEADINGS ON THE FOURTH AMENDED COMPLAINT OF DEFENDANTS COUNTY
OF LOS ANGELES (ERRONEOUSLY SUED AS LOS ANGELES COUNTY SHERIFF'S DEPARTMENT),
PATTY MONTOYA, JACOB PORTER KUNES, QUIYEN LU, LAKEISHA MCBROOM, THAJUDEEN
OLADEPO, THOMAS HAN, TIMOTHY BELAVICH, PAULA TOKAR, AND TANIA PLUNKETT

MEET

AND CONFER: UNCLEAR.

Moving Defendants' counsel fails to specify whether the parties met and
conferred telephonically, by video conference, or in person in compliance with
the statutory requirements. (Parker Decl., ¶¶ 3-4.)

BACKGROUND:

Action for Bane Act violations, negligence, and violation of Penal Code section
10008 arising out of the wrongful death of an inmate

TIMELINE:

9/24/2022:

Decedent Stanley Wilson, Jr. ("Decedent") enters the custody of

Defendant

County of Los Angeles (the "County") at the Twin Towers Correctional Facility ("Twin Towers"). Decedent was being held on property-related criminal charges. Decedent's medical records reflect ongoing mental-health related concerns until his death on 2/1/2023.

10/13/2022:

Decedent is found incompetent to stand trial for the criminal

charges

brought against him. The County then approves medical treatment for Decedent's psychiatric condition.

11/7/2022:

Decedent is ordered to be committed to the California Department

of

State Hospitals ("DSH") Metropolitan State Hospital (the "DSH Hospital")

as

a forensic patient for mental health treatment.

2/1/2023:

Decedent is transported by the County/LASD from Twin Towers to

the

DSH Hospital. Soon after his arrival at the DSH Hospital, Decedent is pronounced dead.

3/14/2023

and 3/29/2023: Decedent's parents, Plaintiffs Stanley Wilson, Sr.

and

Pulane Lucas, and the Estate of Stanley Wilson Jr. (collectively "Plaintiffs") present their respective government claims to LASD and the County.

9/13/2023:

Plaintiffs files the Complaint in this action, alleging the following

causes

of action:

1. Excessive Force (24 U.S.C. section 1983)

2. Cruel and Unusual Punishment (42 U.S.C. 1983)

3. Bane Civil Rights Act Violations (Civ. Code section 52.1)

4. Battery

5. Negligence

6. Negligent Hiring, Supervision, and Retention

7. Failure to Comply with California Public Records Act (Gov. Code section 7920.000 et seq.)

8. Violations of Penal Code section 10008 (Failure to Report In-Custody Deaths of Inmates)

11/14/2023:

The County files a Notice of Removal to Federal Court. The

Corrected

First Amended Complaint ("1st AC") is filed in in the Central

District

on 4/3/2024.

7/30/2024:

The Central District dismisses both federal causes of action without

leave

to amend, and on 8/6/2024, the remaining state claims are remanded to the Los Angeles Superior Court.

3/20/2025:

This Court enters a ruling on the demurrer to the 1st AC of the DSH

Hospital

employees.[1]

4/9/2025:

Plaintiffs file a Second Amended Complaint ("SAC"). On 6/16/2025,

the

Court enters a ruling on the demurrer to the SAC of the DSH Hospital employees.[2]

6/26/2025:

Plaintiffs file a Third Amended Complaint ("TAC").

10/3/2025:

Plaintiffs file multiple Amendments to the Complaint, identifying

Defendants

Thomas D. Han, D.D.S. ("Han"), Jacob Porter Kunes, D.O. ("Kunes"), Lakeisha McBroom ("McBroom"), Quiyen Lu, Pharm.D., A.P. ("Lu"), Thajudeen Oladepo ("Oladepo"), Patty R. Montoya, N.P. ("Montoya"), and Michael Smith, M.D. as Doe Defendants.

10/10/2025:

Plaintiffs file multiple Amendments to the Complaint, identifying

Defendants

Assistant Sheriff Paula L. Tokar ("Tokar") and Tania E. Plunkett ("Plunkett") as additional Doe Defendants.

10/15/2025:

After the Court grants Plaintiffs leave to file another amended

complaint,

Plaintiffs file the operative Fourth Amended Complaint ("FAC"), alleging causes of action for:

1. Bane Civil Rights Act Violations

(Civ. Code section 52.1)

2. Negligence

3. Negligent Hiring, Supervision, and
Retention

4. Violation of Penal Code section
10008 (Failure to Report In-Custody Deaths of Inmates)

6/4/2026:

Defendants Montoya, Kunes, Lu, McBroom, Oladepo, Han, Tokar,

Plunkett,

Timothy Belavich, Ph.D., and the County (collectively, the “County Defendants”) file this Demurrer to the FAC, followed by Plaintiffs’ Opposition (6/17/2026) and the County Defendants’ Reply (6/25/2026).

TENTATIVE

RULING: MOTION FOR JUDGMENT ON THE PLEADINGS ON THE FOURTH AMENDED COMPLAINT OF THE COUNTY DEFENDANTS is DENIED in part and GRANTED in part.

I. MOTION FOR JUDGMENT ON THE PLEADINGS

The

County Defendants move for judgment on the pleadings on the grounds that Plaintiffs’ Fourth Amended Complaint is barred under the Government Claims Act (“GCA”) for failure to comply with the GCA’s claim presentation requirements. The Court, however, finds that Plaintiffs have sufficiently pleaded compliance with the claim presentation requirements of the GCA and DENIES the motion accordingly.

In

actions against public entities, or their employees, the public entity must be presented with a claim in the form specified by Government Code (“Gov. Code”) section 945.4 and a lawsuit must then be brought within six months from any notice of claim rejection. (Westcon Construction Corp. v. County of Sacramento (2007) 152 Cal.App.4th 183, 190, citing Gov. Code § 945.6(a)(1).) The GCA “is intended to give the public entity an opportunity to investigate and evaluate its potential liability and, where appropriate, avoid litigation by settling meritorious claims.” (Hernandez v. City of Stockton, (2023)

90 Cal.App.5th 1222, 1231 (Hernandez).) Thus, timely claim presentation is a condition precedent to filing a lawsuit, and complaints that do not allege timely claim presentation or cognizable excuses are subject to a general demurrer. (State of California v. Superior Court (2004) 32 Cal.4th 1234, 1241.)

Gov. Code

section 910 prescribes the information that a government claim must contain, including: (1) the date, place, and circumstances of the occurrence or transaction giving rise to the claim, (2) a description of the injury, damage or loss, and (3) names of employees causing the alleged injury, if known, so as to give notice sufficient for the entity to investigate and evaluate the claim. (Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Auth. (2004) 34 Cal.4th 441, 446; Blair v. Superior Court (1990) 218 Cal.App.3d 221, 224-225.) “Furthermore, ‘[i]f a plaintiff relies on more than one theory of recovery against the [governmental agency], each cause of action must have been reflected in a timely claim.’” (Fall River Joint Unified School Dist. v. Superior Court (1988) 206 Cal.App.3d 431, 434.) A material variance between a government claim and a complaint based on a different set of facts from those set out in the claim is grounds to bar a claim, and to sustain a demurrer, unless the allegations are additions of details or elaborations on the facts and fairly included within the facts in the claim. (Stevenson v. San Francisco Housing Authority (1994) 24 Cal.App.4th 269, 275-278 (Stevenson).) Although a government claim is not required to identify specific causes of action or contain the level of detail required in a pleading, it must provide sufficient information to enable public entities to adequately investigate potential claims. (Kempton v. City of L.A. (2008) 165 Cal.App.4th 1344, 1350.)

Here, the

operative Fourth Amended Complaint alleges that Plaintiffs presented their government claims to the County and LASD on 3/14/2023 and 3/30/2023, and that the claims were rejected by operation of law on 4/28/2023. (FAC, ¶ 24.) This action was filed shortly thereafter. (See Compl., generally.) At the request of the County Defendants, the Court takes judicial notice of Plaintiffs’ government claims pursuant to Evidence Code section 452, subdivision (c). (See infra, Section II.) Each of the government claims sets forth the same general factual allegations: (1) Decedent died on February 1, 2023 while in LASD’s custody; (2)

Decedent's death was caused by the County in connection with an unconstitutional excessive force incident while Decedent was restrained; (3) the County restrained Decedent without adequate training and/or supervision to restrain people with known mental health disabilities; and (4) the County failed to implement and maintain proper training and procedures to engage mentally disabled inmates, including Decedent. (Def.'s RJN, Exh. 1.) The government claims explicitly state that Decedent's body was returned to his family "with ligature marks on his wrists and fresh wounds on his head" and these injuries, as well as Decedent's death were "caused by the County as a result of the County's unconstitutional and excessive force used against him while he was in restraints." (Id., at pp. 2, 3, 15.)

The

County Defendants argue that Plaintiffs' government claims unequivocally allege that Decedent died as a result of an excessive force incident while Decedent was restrained due to the County's deficient policies and training regarding mentally ill inmates. (Mot., at p. 6.) Yet, the operative FAC now omits allegations related to the excessive force incident at the DSH Hospital and now alleges that Decedent died from a pulmonary embolism caused by negligent medical care and unconstitutional confinement conditions during his incarceration at Twin Towers. (FAC, ¶¶ 39, 47, 50, 65, 78, 98, 108.) In other words, the County Defendants contend that while the government claims and Plaintiffs' original pleadings primarily alleged that Decedent's death was caused by physical injuries arising from restraint-related excessive force, the FAC now alleges that Decedent's death cause caused by negligent medical treatment by Twin Towers medical personnel, including inadequate medication management, improper conditions of confinement, and delayed transfer to the DSH Hospital. (Ibid.) Indeed, the FAC alleges that the County's medical personnel failed to stabilize Decedent's deteriorating conditions, failed to adequately prescribe and administer medication, negligently monitored Decedent's medical status, administered medication which increased the risk of pulmonary embolism, and failed to timely recognize the symptoms associated with this complication. (Id. ¶¶ 33, 39, 47.) The FAC further alleges that Decedent was subjected to unsafe and unconstitutional confinement conditions, such as prolonged isolation, lack of physical activity, unsanitary conditions, deprivation of hygienic supplies, and inedible food products, which together which the County's medical negligence contributed to Decedent's premature death. (Id. ¶¶ 47, 78, 108.)

As

compared to the narrow factual narrative framed by the County Defendants, Plaintiffs

characterize their government claims more broadly as wrongful death claims, asserting a theory of liability against the County based on the County's failure to handle and treat Decedent as an inmate experiencing mental illness, in violation of Decedent's constitutional rights. (Opp., at p. 3.) Plaintiffs assert that they could not have provided additional factual specificity in their government claims because they had limited information regarding the specific cause of Decedent's in-custody death. (Ibid.) Yet, even in their government claims, Plaintiffs noted that "the County has grossly misrepresented the cause and circumstances of [Decedent's] death" and "the results of the County's investigation as to the cause of [Decedent's] death has yet to be released." (Def.'s RJN, Exh. 1, at p. 2.) Indeed, at its core, Plaintiffs' lawsuit against the County has always been a wrongful death suit arising from the County's unconstitutional, unsafe, and negligent treatment of Decedent, who was a disabled inmate, and the County's concurrent failure to maintain appropriate training, tools, protocols, and procedures to engage mentally disabled individuals, including Decedent. (Ibid.) For example, prior to the FAC, Plaintiffs had already pled that the County Defendants failed to reasonably and timely provide Decedent with needed medical care. (See e.g. TAC, ¶¶ 29, 35.) Both the original Complaint and the more recent TAC asserted liability based on the Decedent's inadequate and negligent medical care at Twin Towers and pled that the denial of necessary health care was a substantial factor in Decedent's death. (Compl., ¶¶ 36, 56-57, 61, 63, 92, 101-102; TAC, ¶¶ 30, 33-34.)

The Court

finds that the government claims submitted to the County/LASD in 2023 adequately represented the extent of the facts known to Plaintiffs at the time the claims were filed and would have provided sufficient facts to place the County Defendants on notice of the potential scope of liability arising from Decedent's death which are now asserted in the operative Fourth Amended Complaint. First, the government claims comply with the requirements of Gov. Code section 910, subdivision (d) by alleging that the County is responsible for causing the death Decedent as a result of their failure to properly and safely care for Decedent (in light of his disabilities) and their failure to implement proper policies and procedures for caring for mentally disabled inmates, such as Decedent. (Def.'s RJN, Exh. 1.) These allegations appear to reflect "a general description of the indebtedness, obligation, injury, damage or loss incurred so far as it may be known at the time of presentation of the claim." (Gov. Code, § 910, subd. (d), *italics added*.) Second, the allegations in the government claims were sufficient to provide the County with adequate notice of its alleged liability for Decedent's death based on theories of both negligence

and constitutional violations, including violations of the Bane Act. Given that the specific factual circumstances leading up to Decedent's death would have been accessible to the County, the County would have had sufficient notice from Plaintiffs' government claims to meaningfully "investigate and evaluate its potential liability..."

in connection with Decedent's death, thereby fulfilling the purpose of the GCA's claim presentation requirement. (Hernandez, *supra*, 90 Cal.App.5th at p. 1231.)

Even if

the operative FAC no longer relies on the excessive force allegations referenced in the government claims and instead focuses on medical negligence and unconstitutional conditions of confinement, the crux of the government claim remains applicable: that the County's policies and practices related to the treatment of mentally ill inmates wrongfully caused Decedent's death. (Def.'s Exh. 1.) Plaintiffs' clarification in the FAC regarding Decedent's true cause of death simply provides additional details and elaborations on the pre-existing theories of negligence and constitutional violations broadly asserted in the government claims. (See Stevenson, *supra*, 24 Cal.App.4th at pp. 275-278.)

In the Court's view, it would be unreasonable to require Plaintiffs to have specifically identified the actual medical cause of Decedent's death in their government claims before Plaintiffs even had access to such information. This is particularly relevant here because such records were within the sole control and possession of the County at the time Plaintiffs brought their claims. Thus, any internal investigation following the government claims would have put the County on notice of the true facts leading to Decedent's death. (Pacific Tel. & Tel. Co. v. County of Riverside (1980) 106 Cal.App.3d 183, 188 ["the court must ask whether sufficient information is disclosed on the face of the filed claim 'to reasonably enable the public entity to make an adequate investigation of the merits of the claim and settle it without the expense of a lawsuit.'"].)

Accordingly,

the Court finds that the County Defendants are not entitled to judgment on the pleadings with respect to their first through third causes of action in the FAC based on theories of negligence and violation of the Bane Act in connection with Decedent's wrongful death.

Notwithstanding

the above, Plaintiff's effectively concede that their fourth cause of action for violation of Penal Code section 10008 is barred by the GCA. (See Opp., at p. 15 ["Plaintiffs ask that the Court allow Plaintiff to proceed against [the County] Defendants for its asserted Bane Act violation and negligence-based causes of action against Defendants and only grant Defendants motion as to the fourth failure to report cause of action."].) The theory of liability based on Decedent's wrongful death arising from the County's negligent conduct and constitutional violations, as is alleged in the government claim, does not encompass Plaintiffs' final cause of action for failure to report in-custody deaths of inmates. This additional statutory claim relates to conduct occurring after Decedent's death and extends beyond the scope of notice provided by the wrongful death allegations in Plaintiffs' government claims. Accordingly, the County Defendants are entitled to judgment on the pleadings pursuant to the GCA with respect with their fourth cause of action only.

Therefore,
the County Defendants' Motion for Judgment on the Pleadings is DENIED in part and GRANTED in part.

II. REQUEST FOR JUDICIAL NOTICE

The
County Defendants request judicial notice of the following Government Claims:
(1) claim submitted to the County by the Estate of Stanley Wilson, Jr. on 3/14/2023, (2) claim submitted to the Los Angeles County Sheriff's Dept. ("LASD") by the Estate of Stanley Wilson, Jr. on 3/29/2023, (3) claim submitted to the County by Plaintiff Stanley Wilson, Sr. on 3/14/2023, (4) claim submitted to LASD by Plaintiff Stanley Wilson, Sr. on 3/29/2023, (5) claim submitted to the County by Plaintiff Pulane Lucas on 3/14/2023, and (6) claim submitted to LASD by Plaintiff Pulane Lucas on 3/29/2023. The Court GRANTS these requests and takes judicial notice of the above-identified Government Claims pursuant to Evidence Code section 452, subdivision (c). (See *Fowler v. Howell* (1996) 42 Cal.App.4th 1746, 1752–1753 [taking judicial notice of records reflecting that the plaintiff did not properly file a government claim].)

Plaintiff
requests judicial notice of the following records:

1. Statistical Data compiled by LASD
and published on its public website, titled "LASD Inmate In-Custody Deaths,"

documenting that Stanley Wilson, Jr.'s death on 2/1/2023 remains uncounted.

2. Recorded public proceedings of
LASD's 4/9/2026 Civilian Oversight Commission Forum on In-Custody Deaths (at
2:00:12 through 2:12:27).

3. Los Angeles Times newspaper
article, titled "An ex-NFL player died in police custody. His grieving family
demands to know what happened" and dated 2/6/2023.

The Court

DENIES Plaintiffs' requests, finding these records are not appropriate subjects
of judicial notice and constitute extrinsic facts that are not relevant for
consideration at the pleading stage.

Defendants

County of Los Angeles (erroneously sued as Los Angeles County Sheriff's
Department), Patty Montoya, Jacob Porter Kunes, Quiyen Lu, Lakeisha McBroom,
Thajudeen Oladepo, Thomas Han, Timothy Belavich, Paula Tokar, and Tania
Plunkett to
serve notice of ruling. This tentative ruling ("TR") shall be the order
of the Court unless changed at the hearing and shall by this reference be
incorporated into the Minute Order.

TR

emailed to counsel and posted to court's website on 6/30/26 at 4 p.m.

[1] The Court overrules the DSH
Employees' Government Claims Act argument, sustains the demurrer to the 3rd,
4th, 5th, and 6th causes of action with leave
to amend and sustains the demurrer to the 7th and 8th
causes of action without leave to amend.

[2] The Court sustains the demurrer to
the 1st, 3rd, and 4th causes of action with
leave to amend and sustains the demurrer to the 7th cause of action
without leave to amend.